COUNTY ADMINISTRATOR Telephone: (269) 467-5617

125 Main St.
P.O. Box 277
Centreville, MI 49032-0277

BOARD AGENDA REQUEST FORM

PROPOSED FOR BOARD MEETING OF: 10/20/2026

DEPARTMENT: Public Defender

PREPARED BY: Administration

SUBJECT: Public Defender Non-Retainer Indigent Defense Agreement

SPECIFIC ACTION REQUESTED:

Approval of use during FY 27 of a non-retainer Indigent Defense Agreement.

DESCRIPTION OF ACTION/BACKGROUND (dollar amount, purpose):

Use of this agreement in FY 27 will ensure consistency between non-retainer agreements.

FUNDING DETAILS (Funding Source, Budget Amount, GL #, etc.):

This funding comes from our MIDC Public Defenders Grant in which the County contributes a fixed local share of $422,808.72.

ST. JOSEPH COUNTY
NON-RETAINER
INDIGENT DEFENSE AGREEMENT
10/01/26 – 9/30/27

This Agreement is made between the County of St. Joseph, a Michigan Municipal Corporation, hereinafter referred to as the "County," and _____, a member of the State Bar of Michigan, hereinafter referred to as the "Attorney."

The County has a need to continue to provide for a just, effective, efficient, and economical system of providing legal counsel for persons charged with criminal offenses who claim that they are financially unable to retain private counsel (indigent).

The Attorney is willing to provide defense representation to individuals determined by the County to be indigent and charged with criminal offenses that would subject them to possible incarceration. The Attorney will provide this representation in accordance with the rules, laws, and standards set out by the Michigan Indigent Defense Commission (MIDC).

THEREFORE, it is agreed between the County and the undersigned Attorney, as follows:

1. Term of Agreement
This Agreement supersedes any and all prior agreements between the County and the Attorney concerning representation of indigent defendants. The term of this Agreement begins October 1, 2026, and continues through September 30, 2027, unless terminated earlier under Section 7.

2. Standards of Representation
The Attorney shall comply with all of the standards set forth by the MIDC and the Michigan Rules of Professional Conduct and shall maintain Professional Liability Insurance of at least One Hundred Thousand Dollars under this Agreement. The Attorney shall be regarded in all ways as an independent contractor, and the County shall not be liable for any damages or injuries arising out of the Attorney's performance of duties under this Agreement. The Attorney shall be responsible for the preparation and submission of 1099 forms or other tax-related forms on the Attorney's behalf.

3. Attorney Obligations
In representing a client, the attorney assigned shall give priority to the obligations under the Agreement in scheduling appearances, and shall:

- Be on time and prepared for all court proceedings.
- Comply with court-ordered deadlines.
- Promptly identify and resolve conflicts of interest.

- Continuously represent the client in the proceeding, except for isolated, unusual, or unexpected circumstances as approved by the assigned judge.

- Conduct an initial meet with the client within three days of arraignment if in custody; promptly communicate with out-of-custody clients.

- Meet with the client in private, review charges, provide discovery, explain defenses, and answer questions.

- File and litigate appropriate motions and complete discovery.

- Prepare the client for plea, trial, and sentencing as required.

4. Scope of Representation

The term "Criminal Offender" and "Defendant" as used in this Agreement means persons determined to be indigent, 18 years of age or older charged with an offense under the statutes of the State of Michigan or ordinances of the Municipal Corporations within St. Joseph County, including those charged with probation violations. The term shall not include civil contempt cases such as non-support or violation of restraining orders.

The Attorney agrees to provide representation at Friend of the Court show cause hearings and PPO violation hearings without additional compensation. The Attorney shall provide representation when appointed by the Chief Public Defender of S. Joseph County. The Chief Public Defender will provide a notice of appointment to the courts and Attorney specifying any cases the Attorney in assigned to.

Except as provided below, the Attorney shall be responsible for complete representation in all proceedings through disposition by sentence or dismissal, including meritorious appeals to Circuit Court, even if disposition extends beyond the termination date of this Agreement.

5. Compensation (FY27 - As-Worked Basis)

- The Attorney shall be compensated only for actual time worked and properly documented under this Agreement. No advance, retainer, minimum payment, duty-week prepayment, or other guaranteed payment is due.

- The Attorney shall track all billable time on the approved spreadsheet, identify the applicable case type, and submit an invoice and completed timesheet at the end of each month after the work is performed.

- The County shall pay the Attorney for approved, properly documented hours actually worked during the preceding month at the applicable hourly rate stated below.

- The County has no obligation to pay for time not actually worked, time not properly documented, or work performed after the Attorney assumes judicial office.

- The Attorney will be paid per MIDC Standards at the following hourly rates:

- Misdemeanor Cases: $131.68/hour
- Felony Cases: $144.85/hour
- Life Offense Felony Cases: $157.98/hour

- The Chief Public Defender may audit timesheets to ensure accuracy and has final say in billing disputes.

6. Independent Contractor Status
The Attorney is an independent contractor. The County shall not provide facilities, benefits, or insurance and shall not be liable for taxes, insurance, or other obligations incurred by the Attorney.

7. Termination of Agreement
This Agreement is terminable as to the Attorney:

- Upon 30 days' written notice by either party;
- Upon 10 days' notice if Attorney becomes unable to perform due to disability for 20 days;
- Automatically upon death;
- Upon issuance of a public disciplinary order against the Attorney; or
- Automatically, immediately before the Attorney assumes judicial office in January 2027.

8. Compliance with MIDC Standards
This Agreement is subject to all standards adopted by the Michigan Indigent Defense Commission, including but not limited to:

- Standard 1 – Education and Training
- Standard 2 – Initial Interview
- Standard 3 – Investigation and Experts
- Standard 4 – Counsel at First Appearance and Other Critical Stages

Approved and agreed to by _____and recommended by the Chief Public Defender of St. Joseph County:

_____ _____

Attorney Date

_____ _____

Keith M. Stickley, Chief Public Defender Date

APPROVED BY VOTE OF THE ST. JOSEPH COUNTY BOARD OF COMMISSIONERS ON _____, 2026.

_____ _____

Chairman, Board of Commissions Gina Everson, County Clerk

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BOARD AGENDA REQUEST FORM

PROPOSED FOR BOARD MEETING OF: October 13 2026

DEPARTMENT: County Clerk- Circuit Court Clerk Office

PREPARED BY: Gina Everson

SUBJECT: MiFIle/Onbase Integration

SPECIFIC ACTION REQUESTED:

Approve Statement of Work No. 34821 with i3 ImageSoft in an amount not to exceed $25,820.00

DESCRIPTION OF ACTION/BACKGROUND (dollar amount, purpose):

The Clerk's Office is set to start using the State of Michigan's MiFILE system on October 19, 2026. We signed up early during the free implementation period so that we could avoid having to pay for a mandatory conversion later. However, we were only recently informed that an additional integration between MiFILE and our existing OnBase system is required and was not included in the State's implementation. i3 ImageSoft has provided a time-and-materials quote for this work, not to exceed $25,820.

FUNDING DETAILS (Funding Source, Budget Amount, GL #, etc.):

Not to exceed $25,820.00

101-212-675.010 Budgeted use of fund balance

101-215-816.000 Contractual Services

Hourly Assist Engagement
Statement of Work

Statement of Work No.	34821
Revision No.	0
Customer Name:	St. Joseph County, MI
Project Name:	MiFILE Document Import Processors Assistance
i3 Contact:	Tim Zarzycki
Contract Type:	Time and Material
Submitted Date:	9/18/2026

General Terms

This Statement of Work ("**SOW**") is made and entered into by and between i3-ImageSoft, LLC, a Delaware limited liability company with a principal office at 40 Burton Hills Blvd., Ste. 415, Nashville, TN 37215 ("**i3**"), and St. Joseph County, MI with a principal office at 125 W Main Street, Centreville, MI 49032 ("**Customer**"). This SOW will become effective as of the date last signed by the parties below. Unless otherwise defined herein, capitalized words used in this SOW will have the meaning given in the applicable Master Service Agreement ("MSA" or "Master"), Professional Services Agreement ("PSA"), System Maintenance Agreement ("SMA"), or other applicable underlying agreement terms ("**Underlying Agreement**"). This SOW is attached to and is hereby incorporated by reference into the applicable Underlying Agreement dated 9/9/2013. The products, software, and services provided within this SOW ("**Subscription**") and applicable Subscription support ("**Support**") are added to and covered for the duration and under the terms of an Underlying Agreement.

This SOW will have the term stated herein unless otherwise expressly provided herein. Notwithstanding anything to the contrary to any other terms of any Underlying Agreement, this SOW may not be canceled or terminated until the end of the then-current SOW term and upon no less than ninety (90) days' prior written notice to i3. For so long as a SOW has an active term, the terms of the Underlying Agreement, as applicable, shall continue until one (1) year after the expiration or termination of the last SOW executed.

Introduction

Customer has requested an i3 professional service resource to assist them in preparing for the use of MiFile in concert with their existing OnBase system. This includes creating document import processors and metadata mapping between MiFile and the existing system..

Assumptions

The hours and fees included in this SOW were estimated based on the following assumptions:

1) Workflow changes requested by Customer will be simple adjustments to the existing system and not a re-architecture of the process flow.
2) Document catalogs are not expected to be updated to support workflow changes.

Description of Services

Under this *Hourly Assist Engagement SOW*, i3 will provide a technical resource to work solely under the direction of the Customer. As part of the effort, i3 may require access to Customer Resources that are familiar with the existing solution installation.

Deliverable Materials

There are no contractual professional services deliverables produced as part of this SOW. Work products and other project artifacts that may be produced as part of this hourly assist engagement do not require acceptance and signoff.

Consulting Fees

i3 will provide assistance and services up to the number of hours listed in *Consulting Fees* below. Any additional work, assistance, or services required to complete the project or as requested by Customer, which exceed the number of ours listed in the table below (i.e. beyond the hours specified in the *Consulting Fees)* will be authorized and agreed to in writing between i3 and the Customer, through an additional mutually agreed upon and signed SOW, Project Change Authorization Procedure (or PCR (as defined below)) document, or other written agreement.

Consulting Fees				
	Product	**Unit Cost**	**# Units**	**Cost**
Professional Services				
Project Initiation Fee	IS-PROFSERVICES	$2,500.00	1	$2,500.00
Consulting Services	IS-PROFSERVICES	$220.00	106	$23,820.00
Consulting Fees Subtotal				**$25,820.00**
Total				
				Cost
Grand Total				**$25,820.00**
****Pricing is valid for only thirty (30) days from Submitted Date****				

Consulting Fees Terms and Payment Schedule:
This engagement will be conducted on a time and material basis. Customer will be invoiced upon receipt of signed SOW for Project Initiation Fees and monthly for consulting services and expenses.

All payments are due on a Net-30 day basis from the date of the invoice.

Key Assumptions

1) The i3 professional services team often requires two to four (2-4) weeks lead time to start a new engagement. Customer should check with its i3 Account Representative for details on current